

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 17, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV03525

SC BLOOM NETWORK, INC. v. NIVA LABS, LLC

PLAINTIFF SC BLOOM NETWORK, INC.’S MOTION TO BE RELIEVED

The Court intends to grant the unopposed motion and sign the order submitted by counsel, but either a representative from SC Bloom Network, Inc. or replacement counsel is ordered to appear at the hearing (in person or by Zoom). If no such appearance is made, the Court will set an OSC for dismissal for failure to have replacement counsel.

No. 26CV01263

TOMBERLIN v. ABBOT SPI INC.

(UNOPPOSED) DEFENDANT’S MOTION TO SET ASIDE DEFAULT

The motion is denied without prejudice. Defendant failed to file its proposed responsive pleading along with the motion, as required by Code of Civil Procedure section 473.5, subdivision b.

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No. 21CV02996

DODSON v. COWLEY et al.

**(UNOPPOSED) PLAINTIFF'S DEMURRER TO DEFENDANTS' FIRST
AMENDED CROSS-COMPLAINT**

The unopposed demurrer is sustained without leave to amend.

On April 21, 2026, the court ordered that any amended cross-complaint ("FACC") must be filed no later than 20 days from that date and must fully comply with Code of Civil Procedure section 425.10, subdivision (a)(1) and related Rules of Court. The court specified in its earlier ruling that due to the age of this case, no further extensions of time would be permitted and if defendants failed to comply with those deadlines the court would consider dismissing any amended cross-complaint for unwarranted delay. (*Emerald Bay Community Association v. Golden Eagle Ins. Corp.* (2005) 130 Cal.App.4th 1078, 1097.)

Defendants did not file their FACC within that deadline; it was filed 13 court days later, on May 28, 2026. The FACC also fails to comply with section 425.10, subdivision (a)(1) by failing to contain a statement of facts constituting a cause of action in ordinary and concise language.

Therefore, the court grants the demurrer to the FACC without leave to amend for failure to adhere to the court's previous rulings and failure to file a FACC that comports with the Code of Civil Procedure and related Rules of Court. Defendants' FACC is dismissed with prejudice.

No. 25CV01247

STAPLETON v. TAIGMAN, et al.

**DEFENDANT STEVEN MELLO DBA MELLO FLOORING'S MOTION TO SET
ASIDE DEFAULT**

The motion is granted. Cross-defendant's motion includes an attorney declaration of mistake. Cross-defendant is ordered to file his responsive pleading no later than September 25, 2026.

I. BACKGROUND

Defendants/cross-complainants Christine Thorne and Charles E. Thorne III dba Quality Homes obtained a default judgment against cross-defendant Steven Mello dba Mello Flooring